

Group Representation and Race-Conscious Apportionment: The Roles of States and the Federal Courts

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## NOTES

### GROUP REPRESENTATION AND RACE-CONSCIOUS APPORTIONMENT: THE ROLES OF STATES AND THE FEDERAL COURTS

One of the most vexing problems that the federal courts have faced in their supervision of voting apportionment is the relationship between apportionment and the influence of racial groups in the electoral and representation process. Recent cases, most notably *United Jewish Organizations v. Carey*,<sup>1</sup> indicate that the questions in this area cannot be answered by a standard so straightforward as whether race was considered in the districting process. In the wake of *United Jewish Organizations*, important questions remain open. Can racial minorities challenge districting plans that concededly stem from no racial legislative motivation by citing adverse electoral outcomes, specifically that minorities are denied the opportunity to elect representatives in proportion to their shares of the population? Conversely, to what extent may a legislature's employment of racial considerations in drawing district lines be justified by a purpose to benefit rather than harm minority racial groups? This Note will discuss the issues that arise when racial considerations become intertwined with apportionment decisions of legislatures and courts.

#### I. HISTORY OF RACIAL CONSIDERATIONS IN APPORTIONMENT CASES

*Baker v. Carr*<sup>2</sup> in 1962 thrust the federal courts into the "thicket"<sup>3</sup> of electoral apportionment. Two years earlier, the Supreme Court had commenced its attack on *racial* gerrymandering. In *Gomillion v. Lightfoot*,<sup>4</sup> it invalidated Alabama's attempt to reshape the city of Tuskegee from a square to "an uncouth twenty-eight-sided figure"<sup>5</sup> thereby removing almost all blacks from the municipal limits. Inferring an intent to infringe the right to vote on grounds of race, the Court found a violation of the fifteenth amendment.<sup>6</sup>

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<sup>1</sup> 430 U.S. 144 (1977); see pp. 1861-62 *infra*.

<sup>2</sup> 369 U.S. 186 (1962).

<sup>3</sup> *Colegrove v. Green*, 328 U.S. 549, 556 (1946).

<sup>4</sup> 364 U.S. 339 (1960).

<sup>5</sup> *Id.* at 340.

<sup>6</sup>

Section 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race,

Beginning with *Reynolds v. Sims*,<sup>7</sup> protection against inequitable apportionment found a second constitutional rationale in the fourteenth amendment guarantee of equal protection. First employed to mandate equal electoral weight for each individual's vote — one man, one vote — the fourteenth amendment came to embrace the same racial intent standard that *Gomillion* had established for the fifteenth. Constitutional challenges to districting plans, made by racial minorities under the fourteenth or fifteenth amendment, were assessed under a standard that required of plaintiffs a showing of racial intent or motivation on the part of the legislature.<sup>8</sup> Courts dealt with racially motivated plans by remanding to the legislature for reconsideration,<sup>9</sup> or by ordering restoration of the status quo ante.<sup>10</sup> Where racial intent could be neither directly proved nor readily inferred from the configuration of district boundaries, the Supreme Court generally upheld even apportionment plans that fragmented minority concentrations.<sup>11</sup>

An exception to the intent requirement arose in the situation of multimember districts, where at-large elections tend to submerge minority group voting strength.<sup>12</sup> Beginning with *White v. Regester*,<sup>13</sup> the Supreme Court has invalidated plans in these cases even when invidious intent was not shown. It has found a denial of "access to the political process"<sup>14</sup> where there is a consistent inability of minorities to win elective office, a local history of discrimination, restrictions on minority registration, and limitations on minority membership and participation in political party

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color, or previous condition of servitude.

Section 2. The Congress shall have power to enforce this article by appropriate legislation.

U.S. CONST. amend. XV.

Justice Whittaker concurred, relying on the equal protection clause of the fourteenth amendment to find unlawful segregation of black voters. 364 U.S. at 349.

<sup>7</sup> 377 U.S. 533 (1964).

<sup>8</sup> See, e.g., *Wright v. Rockefeller*, 376 U.S. 52, 58 (1964); *Howard v. Adams County Bd. of Supervisors*, 453 F.2d 455, 457 (5th Cir.), cert. denied, 407 U.S. 925 (1972); *Smith v. Paris*, 257 F. Supp. 901, 904 (M.D. Ala. 1966); *Sims v. Baggett*, 247 F. Supp. 96, 105 (M.D. Ala. 1965) (three-judge court).

<sup>9</sup> See *Sims v. Baggett*, 247 F. Supp. 96, 110 (M.D. Ala. 1965) (three-judge court) (invalidating legislature's reapportionment and leaving it up to the legislature to proceed).

<sup>10</sup> See *Gomillion v. Lightfoot*, 364 U.S. 339 (1960).

<sup>11</sup> See *Wright v. Rockefeller*, 376 U.S. 52 (1964).

<sup>12</sup> For example, a local black majority's ability to elect a representative from a single-member district could be negated by combining that district with several adjacent white-majority districts, which could then elect all white representatives in at-large elections in the new multimember district.

<sup>13</sup> 412 U.S. 755 (1973).

<sup>14</sup> *Chapman v. Meier*, 420 U.S. 1, 17 (1975).

affairs.<sup>15</sup> It is possible to frame the "denial of access" test as either a separate test or an inference from effect to intent.<sup>16</sup>

<sup>15</sup> See, e.g., *White v. Regester*, 412 U.S. 755, 765-66 (1973); *Whitcomb v. Chavis*, 403 U.S. 124, 144 (1971); *Fortson v. Dorsey*, 379 U.S. 433, 439 (1965).

*Fortson* held that multimember districts, despite their inherent tendency to submerge minority voters in a sea of majority voters, were not per se illegal; yet, their validity is justiciable, *id.* *Whitcomb* made it clear that the challenger bears the burden of proof "that multi-member districts unconstitutionally operate to dilute or cancel the voting strength of racial or political elements." 403 U.S. at 144. *White v. Regester* was the first case in which this burden was met, leading to invalidation of a multimember districting scheme. The holding was based on a confluence of factors in addition to multimember districts, see 412 U.S. at 765-70: a majority vote requirement for nomination, which prevented a black from winning without an eventual runoff against a white; use of a place system to break the multimember election into a number of specific head-to-head races; the absence of subdistrict requirements that at least some of the seats be represented by residents of each part of the city, including black areas; a history of past state discrimination; the fact that only two blacks had been elected since Reconstruction, and they only with white support; unresponsiveness of the dominant white political machine to the needs of blacks; and, in the case of Mexican-Americans, their depressed socioeconomic level which precluded effective participation in the political process. More recently, the catalog of relevant factors was reformulated by the Fifth Circuit in *Zimmer v. McKeithen*, 485 F.2d 1297, 1305 (5th Cir. 1973) (en banc), *aff'd per curiam on other grounds sub nom.* *East Carroll Parish School Bd. v. Marshall*, 424 U.S. 636 (1976). The court also noted that not all the factors need be shown to establish unconstitutionality, 485 F.2d at 1305 (strong showing of no tradition of multimember districting substituted for *White v. Regester* showing of unresponsiveness of white legislators). To the extent that courts allow a strong showing of one of the factors enumerated in *White v. Regester* to obviate the need to show others, reliance almost exclusively upon the single factor of historical failure of blacks to elect representatives in their proportion of the population would amount to recognition of a right of proportional representation. Yet, as will be shown, the Supreme Court has consistently eschewed the notion that under either the fourteenth or fifteenth amendment, inability of a race to elect its favored representatives constitutes a violation of any voting right. If a right of proportional representation were to be recognized, courts would be forced to develop a remedy to vindicate this right.

The *Zimmer* court purported to establish a constitutionally based test, but the Supreme Court affirmed on equitable grounds without approving the constitutional aspect. However, courts in the Fifth Circuit have since applied the *Zimmer* test as the relevant constitutional formulation, see, e.g., *David v. Garrison*, 553 F.2d 923, 929-30 (5th Cir. 1977); *Brown v. Moore*, 428 F. Supp. 1123, 1127 (S.D. Ala. 1976). Moreover, the Supreme Court did not explicitly disapprove the *Zimmer* catalog of factors; rather, it did not acquiesce in what seemed to be a holding that multimember districts were unconstitutional unless either their use advanced minority opportunity for political participation or single-member districts would infringe constitutionally protected rights. 424 U.S. at 638.

For discussion of multimember districting, see *Whitcomb v. Chavis*, 403 U.S. at 157-60 & n.38, and sources cited therein.

<sup>16</sup> The violation would then be found when the set of factors present indicates that the multimember districting is deliberately being used to perpetuate denial of access. This is fortified by the inclusion among the invalidating factors of a lack of any traditional state policy favoring the use of multimember districts, see,

An apportionment plan may also be attacked without proving intent where the Voting Rights Act of 1965<sup>17</sup> applies. Section 5 of the Act<sup>18</sup> provides that in certain states or areas<sup>19</sup> any apportionment change<sup>20</sup> must be approved by the Attorney General of the United States, or the District Court for the District of Columbia, before it may take effect. The basis for invalidating a change in the districting plan of a state is not constitutional, but statutory, though the authority for the Act rests in the enforcement power of section 2 of the fifteenth amendment.<sup>21</sup> The Supreme Court has announced a separate standard for Voting Rights Act cases — nonretrogression — prohibiting any districting changes which decrease minority voting power.<sup>22</sup>

The Supreme Court thus developed a composite scheme for protecting against racial discrimination in districting. Any showing of invidious intent suffices to invalidate a districting plan. Multimember districts can be challenged where there is a denial of access, and electoral changes subject to the Voting Rights Act can be attacked if their effect is to reduce minority group representation, in both cases irrespective of legislative intent. The concentration on racial intent, with attention to effects only in limited situations, encouraged some to perceive the constitutional standard for apportionment as procedural colorblindness by government.<sup>23</sup>

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e.g., *Zimmer v. McKeithen*, 485 F.2d 1297, 1307 (5th Cir. 1973) (en banc), *aff'd per curiam on other grounds sub nom.* *East Carroll Parish School Bd. v. Marshall*, 424 U.S. 636 (1976); 26 ALA. L. REV. 163, 170 (1973) (suggesting recency of adoption of multimember plans as determinative). This view of the *White v. Regester* test would comport well with *Washington v. Davis*, 426 U.S. 229, 241-42 (1976) (inferring required intent where obvious from effects); *id.* at 253-54 (Stevens, J., concurring) (citing *Gomillion* as a blatant example); see *United Jewish Organizations v. Carey*, 430 U.S. at 180 (Stewart, J., concurring). *Howard v. Adams County Bd. of Supervisors*, 453 F.2d 455, 457-58 (5th Cir.), *cert. denied*, 407 U.S. 925 (1972), however, contrasted the type of violation later found in *White v. Regester* with the invidiously motivated gerrymander of cases such as *Gomillion v. Lightfoot*. See *Brown v. Moore*, 428 F. Supp. 1123, 1134-39 (S.D. Ala. 1976) (intent not needed under *White v. Regester*, reconciling *Washington v. Davis*); *Black Voters v. McDonough*, 421 F. Supp. 165, 192 n.40 (D. Mass. 1976) (intent not needed).

<sup>17</sup> 42 U.S.C. §§ 1971, 1973 to 1973bb-1 (1970 & Supp. V 1975).

<sup>18</sup> *Id.* § 1973c (Supp. V 1975).

<sup>19</sup> For the criteria determining which states or areas are covered, see *id.* § 1973(a)-(d) (1970 & Supp. V 1975).

<sup>20</sup> *Georgia v. United States*, 411 U.S. 526, 531 (1973), established that districting changes fall within the ambit of § 5 of the Voting Rights Act.

<sup>21</sup> See *South Carolina v. Katzenbach*, 383 U.S. 301, 326-28 (1966); note 6 *supra*.

<sup>22</sup> *Beer v. United States*, 425 U.S. 130, 141 (1976).

<sup>23</sup> See, e.g., *United Jewish Organizations v. Wilson*, 510 F.2d 512, 531 (2d Cir. 1975) (Frankel, J., dissenting), *aff'd sub nom.* *United Jewish Organizations v. Carey*, 430 U.S. 144 (1977).

Recent Supreme Court decisions, however, have revealed additional complexities in the standard for adjudication of racially based claims in apportionment cases. The Supreme Court approved legislative consideration of race to satisfy the Voting Rights Act.<sup>24</sup> *United Jewish Organizations* rejected a per se rule against voluntary use of racial criteria in apportionment.<sup>25</sup> Once it is shown that a districting plan is based on racial considerations, it remains for plaintiffs to demonstrate that those criteria were used invidiously. The Supreme Court has not, however, enunciated the limits of race-conscious districting. Two currently unresolved issues are whether legislatures can consider race in nonremedial contexts and whether courts as well as legislatures are ever permitted, or even compelled, to take account of race.<sup>26</sup> In this connection, is there any basis, as one commentator has advocated, for a constitutional *right* to a certain minimal or proportional level of representation for particular racial groups? <sup>27</sup>

### A. Group Voting — Precedent

Underlying the debate over the proper role of race in electoral apportionment is the question whether the fundamental criterion of equal protection in apportionment should be procedural fairness in the districting process or the substantive outcome of that process on the representation of different groups. Race-neutral districting permits a wide range of outcomes in terms of relative power of racial groups, which result from any number of non-race-related considerations, such as relative strengths of political parties<sup>28</sup> and natural and historical boundaries. An outcome-orientation which would give each racial group its "fair share" of representatives, on the other hand, is the antithesis of a purely race-neutral procedural approach.

To trace the implications of a fair outcome approach, and to examine the Supreme Court's past attitude toward this approach, it is instructive to analyze a recent formulation advocating scrutiny of outcome in apportionment cases—a proposal that racial minorities be afforded a constitutional right to representa-

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<sup>24</sup> See *Beer v. United States*, 425 U.S. 130, 141 (1976); *City of Richmond v. United States*, 422 U.S. 358, 370-71 (1975) (postannexation districting plan must "fairly [reflect] the strength of the Negro community").

<sup>25</sup> 430 U.S. at 161.

<sup>26</sup> See *Kirksey v. Board of Supervisors*, 554 F.2d 139 (5th Cir.) (en banc), cert. denied, 434 U.S. 968 (1977), discussed pp. 1858-59 *infra*.

<sup>27</sup> See Note, *United Jewish Organizations v. Carey and the Need to Recognize Aggregate Voting Rights*, 87 YALE L.J. 571 (1978) (suggesting the fifteenth amendment as basis).

<sup>28</sup> See *Gaffney v. Cummings*, 412 U.S. 735 (1973).

tion proportional to their numbers in the population.<sup>29</sup> This right would be realized through the institution of a minimum number of "safe districts" for particular groups.<sup>30</sup>

The proposal of a group voting right assumes that race is the primary political interest of members of a racial group, that voters cast their ballots for members of their own race, and that voters are best represented by members of their own racial group. Combining these assumptions with a fourteenth amendment notion of equal protection through equal representation for equal-sized groups, or with a fifteenth amendment idea that less than proportional representation is a denial of the franchise, one can arrive at a group representation right. The proposal stops just one step short of actual equality of result — segregation of the legislature into separate seats reserved for the different racial groups so as to insure the ideal of proportional representation against the vicissitudes of the electoral process.

Constitutional claims based on the idea of group representation, complaining of electoral outcomes unfavorable to minority racial groups, have not fared well before the Supreme Court. While recognizing that racial groups often do vote as blocs,<sup>31</sup> the Court has consistently rejected the idea that state legislatures

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<sup>29</sup> See Note, *supra* note 27.

<sup>30</sup> It is also possible to frame a group voting right that employs multimember districts if the state so chooses and achieves minority representation through the use of cumulative voting, *see id.* at 598. These two systems ultimately treat differently sized segments of the minority population as the basic units that must be accorded proportional representation. The former contemplates a proportional share for the minority voters in *each* district; the latter allows some to have no chance of representation by a member of their own minority group from their district as long as the total percentage of minority representatives — in the city, state, or whatever political unit is determined to be relevant, *see id.* at 600 — is in the proper proportion.

To the extent that the single-member system recognizes that some minority voters will have to be satisfied with indirect representation by minority representatives from other districts, the fourteenth amendment basis, which speaks if at all to the *individual's* right, is undercut. The fifteenth amendment notion of adequate representation for the group would survive.

The difference between the two systems as a practical matter, however, may be illusory, since the state has the power to subdivide districts by changing the size of the legislature, within certain practical and self-imposed limits.

Standards for compliance would be necessary, *id.* at 599–602, and it is here that factors such as bloc voting patterns and demography would be considered in order to establish tolerances within which proportional representation would have to be provided. *But see id.* at 599–600 (bloc voting is a prerequisite for the existence of the aggregate voting right rather than a limitation on the enforceability of the right). In the same way that courts adjudicate constitutional questions based upon failure to satisfy the requirements of the one person, one vote principle, they would be expected to enforce the right of proportional representation in private actions. *See id.* at 602.

<sup>31</sup> *See, e.g., United Jewish Organizations v. Carey*, 430 U.S. at 166–68.



must make bloc voting effective by arranging voting districts in configurations favorable to minority groups. The absence of proportional representation does not in itself amount to a constitutional violation.<sup>32</sup> The Court recently stated its view of complaints based solely on the inability of minorities to elect candidates:

However disagreeable this result may be, there is no authority for the proposition that the candidates who are found racially unacceptable by the majority, and the minority voters supporting these candidates, have had their Fourteenth or Fifteenth Amendment rights infringed by this process. Their position is similar to that of the Democratic or Republican minority that is submerged year after year by the adherents to the majority party who tend to vote a straight party line.<sup>33</sup>

Instead, the Supreme Court has generally espoused the standard of intent that focuses on procedural fairness in the districting process. Although no group has a right to a certain level of representation, purposeful attempts to lessen a group's representational strength on grounds of race are unconstitutional. The Supreme Court does look at effects in apportionment cases that concern multimember districts, but even here the Court has rejected the complete reliance on outcome analysis that a group voting right would require:

Nor does the fact that the number of ghetto residents who were legislators was not in proportion to ghetto population satisfactorily prove invidious discrimination absent evidence and findings that ghetto residents had less opportunity than did other Marion County residents to participate in the political processes and to elect legislators of their choice.<sup>34</sup>

The Supreme Court does look at effects where the Voting Rights Act of 1965 applies but demands not proportionality, but the lesser standard of nonretrogression, despite the fact that application of the Act is triggered by certain evident indicators of different levels of participation in the political process.<sup>35</sup> Both exceptions represent a willingness to look at outcome to monitor legislatures that have taken actions that might be considered antiminority.

A recent example of the Supreme Court's approach is *Connor v. Finch*,<sup>36</sup> a case challenging the districting of the Mississippi

<sup>32</sup> See, e.g., *Chapman v. Meier*, 420 U.S. 1, 17 (1975); *White v. Regester*, 412 U.S. 755, 765-66 (1973); *Whitcomb v. Chavis*, 403 U.S. 124, 149-50 (1971).

<sup>33</sup> *United Jewish Organizations v. Carey*, 430 U.S. at 167.

<sup>34</sup> *Whitcomb v. Chavis*, 403 U.S. 124, 149 (1971).

<sup>35</sup> See p. 1850 *supra*.

<sup>36</sup> 431 U.S. 407 (1977).



state legislature. The Court spoke in the traditional terms of the intent test, going only so far as to say that an apportionment plan that departed from lines that one would naturally expect might be open to charges of invidious intent.<sup>37</sup> This expresses a continuing willingness on the part of the Court to infer invidious intent from hypothetical effects of oddly drawn maps.

This concern with the intent behind the districting plan, rather than the effects upon particular groups, is consistent with the Court's other apportionment decisions. In *Baker v. Carr*,<sup>38</sup> it left open two alternatives: reviewing courts might either allocate electoral strength among *groups*, or focus only on the mathematical equality of weight of the vote of each *individual*. *Reynolds v. Sims*<sup>39</sup> expressly chose the latter approach: "Legislators represent people, not trees or acres. Legislators are elected by voters, not farms or cities or economic interests."<sup>40</sup> By adopting an individual emphasis, and leaving to chance the relative electoral strengths of competing groups, the Court arrived at an easily enforceable objective standard. Thus, *Reynolds v. Sims* avoided Justice Frankfurter's worst fears of courts deciding "broad issues of political organization,"<sup>41</sup> entailing "shift[s] in political influence among the groups composing a society"<sup>42</sup> — questions which do not lend themselves to resolution under customary legal criteria. The one person, one vote standard and the prohibition of invidious intent in the districting process provide constraints on districting by state legislatures, but within these broad limits, legislatures are free to resolve the political questions whose answers determine the relative electoral strengths of competing racial, ethnic, religious, or economic groups.

This approach defines the standard for violations of the fourteenth amendment equal protection clause. The fifteenth amendment standard for abridgement of the right to vote on

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<sup>37</sup> *Id.* at 425.

<sup>38</sup> 369 U.S. 186 (1962).

<sup>39</sup> 377 U.S. 533 (1964).

<sup>40</sup> *Id.* at 562.

The Court thus foreclosed the argument that traditional political factors such as urban/rural balance could allow a state to weight one voter's vote more heavily than another's. While this would not prevent consideration of group interests in addition, see generally Fiss, *Groups and the Equal Protection Clause*, 5 PHILOSOPHY & PUB. AFF. 107 (1976), it is interesting to note that the Court did not raise this possibility and indeed spoke so emphatically of the *individual* as the concern of the legislator.

<sup>41</sup> *Baker v. Carr*, 369 U.S. at 289 (Frankfurter, J., dissenting).

<sup>42</sup> *Id.* at 299. See generally Auerbach, *The Reapportionment Cases: One Person, One Vote — One Vote, One Value*, 1964 SUP. CT. REV. 1.

account of race is identical to the equal protection standard regarding racial apportionment.<sup>43</sup>

### *B. Practical Problems of Group Voting*

The Supreme Court's rejection of a collective right to electoral influence may be defended on both practical and theoretical grounds. Under a system of group voting rights, countless groups would press claims for group representation,<sup>44</sup> raising the specter of precisely that judicial quagmire against which Justice Frankfurter warned.<sup>45</sup> Conscious choices between the interests of competing groups can be made only on political grounds; they cannot be resolved by any general legal or judicial principle such as one person, one vote. Courts best serve as a final arbiter of constitutionality — limiting their influence over relative group electoral strengths to those situations where the invidious intent of a legislature casts doubt on its ability to resolve these questions legitimately through the political process.

Determining the common interests of a group of voters is almost impossible. In any group, each member will subscribe to a different constellation of viewpoints. Factors such as race and bloc voting are seen as indicators that certain groups are likely to share a number of unspecified interests. Yet these factors might not accurately reflect common interests of a putative group regarding those issues that will come before a legislature. Where a group is a minority in a district, bloc voting may reflect merely longstanding attitudes of fear and prejudice rather than a reasoned decision by each voter that a particular candidate best represents his interests. Should the group then be placed in a district in which it constitutes a voting majority, the race issue disappears, and factions may form on different issues. This may lead even to the election of a member of the previously dominant majority group;<sup>46</sup> thus, bloc voting may not be a

<sup>43</sup> See, e.g., *United Jewish Organizations v. Carey*, 430 U.S. at 165 (citing both *White v. Regester* and *Gomillion v. Lightfoot* for the standard).

<sup>44</sup> See, e.g., *Whitcomb v. Chavis*, 403 U.S. 124, 156–57 (1971).

<sup>45</sup> One commentator has proposed that group voting rights be grounded only in the fifteenth amendment so as to afford only groups identified by race a right to group representation. See Note, *supra* note 27. But in light of the Supreme Court's consistent use of the fourteenth and fifteenth amendments together to define a non-group-oriented approach, this proposal would require a complete disregard of precedent, employing an individual approach under the fourteenth amendment and a group approach under the fifteenth. See *id.* at 591 (dismissing fourteenth amendment precedents).

<sup>46</sup> In fact, whites were subsequently elected in four out of five of the supposedly safe black districts considered in *United Jewish Organizations*. 430 U.S. at 185 (Burger, C.J., dissenting). This may have been due to many factors, including factionalism, low black voter turnout, miscalculation of the level of black popula-

sufficient indicator of coherence of interests. Even among members of a single unified minority group, it is unclear what allocation of minority voters among various districts will put the minority in the position of a majority or swing bloc in as many districts as possible without spreading it so thinly as to lose control in any of those districts.<sup>47</sup>

While courts may recognize racial bloc voting as a persistent phenomenon, it would be a much greater commitment to grant the constitutional imprimatur to what is at best an unfortunate situation.<sup>48</sup> In fact, each individual will hold many interests to be important, and different voters will rank their interests differently. Even if one were to assume a novel constitutional right to be districted with others who share the same interests, this in itself provides no convincing reason to single out race as the primary interest to be recognized. Why should a black voter who values unionism or environmental concerns more highly than the visible "black" issues be districted with other blacks rather than with other advocates of unions and environmentalism? The arbitrariness of the judicial assumption that voters value race above other interests may be one reason why the Supreme Court has not recognized a constitutional right to combine collective interests.

Were there a group voting right, it would be limited by the equally important one person, one vote principle to groups large enough to support at least one representative. Yet it is precisely the smallest groups that are most in need of representational strength in order to make their voices heard. It might be argued that this is the essence of the American majority election system as opposed to proportional representation schemes styled on European models: the electoral system filters out those inputs not supported by a minimum number of voters. But this argument, which may or may not be valid in the abstract,<sup>49</sup> ignores the entire set of their interests, notwithstanding race.

<sup>47</sup> See, e.g., *Wright v. Rockefeller*, 376 U.S. 52, 57-58 (1964).

The swing position of a minority might even enable it to control a proportion of the districts greater than its share of the population, as is the case with presidential electoral votes. See Note, *Reapportionment and Minority Politics*, 6 COLUM. HUMAN RIGHTS L. REV. 107 (1974) (advocating this as a compensatory measure).

<sup>48</sup> See *United Jewish Organizations v. Carey*, 430 U.S. at 166-67; *Kirksey v. Board of Supervisors*, 554 F.2d 139, 149 (5th Cir.) (en banc), cert. denied, 434 U.S. 968 (1977).

<sup>49</sup> The experience of American blacks, a significant minority, points both ways. In some areas, notably the South, prejudice has kept them notoriously under-represented. In others, such as large cities, they sometimes wield power beyond their numerical proportion as swing blocs, especially in presidential elections.

two factors introduced by granting a collective voting right only to groups of a specified size. First, whether or not a particular group will be recognized for purposes of districting depends on its size relative to the district norm, which may be manipulated by the state.<sup>50</sup> The second factor is more subtle: where no minority has any group representation, coalition between groups is encouraged. Granting a group representation right to the larger groups would leave the smaller ones with virtually no chance for effective coalition.

In addition, constraints are imposed by provisions in many states that require that districts be compact and contiguous<sup>51</sup> and also by the refusal of people to tolerate districts that look too much like gerrymanders. Therefore, if the minority members were integrated with the majority, instead of living in ghetto pockets, they would not be entitled to a group representation right, since it would be impossible to carve out a compact and contiguous district that included only minority voters.<sup>52</sup>

<sup>50</sup> In congressional elections, the size of each district is determined by the nation's population and is approximately constant throughout the nation. Variations are introduced by shifts in population distributions, which are measured only every ten years; by the requirement that even the tiniest states have one Representative, U.S. CONST. art. I, § 2; and by minimal disparities permitted under the one person, one vote rule for congressional elections, *see* Abate v. Mundt, 403 U.S. 182 (1971); *Wesberry v. Sanders*, 376 U.S. 1 (1964) (deriving standard from language in article I of the Constitution that Representatives be chosen "by the People of the several States"). But in all other elections, the size of a typical district is determined by dividing the total population of the political unit by the number of seats, and the number of seats is left to state determination.

<sup>51</sup> *See, e.g.*, ILL. CONST. art. 4, § 3(a); PA. CONST. art. 7, § 9.

<sup>52</sup> The force of this objection is considerably mitigated by the fact that integration of the two communities also removes one of the primary evils that has led to a desire for a group representation right: unresponsiveness of rural and suburban white legislators to the needs of urban ghetto blacks. If blacks and whites live closely together, racial prejudice may to some extent be abated, and even the prejudice that remains will not prevent the dominant whites from supporting views and projects that the community shares as a whole. It is still possible, however, to imagine interests shared only by blacks no matter how integrated the community is, and it is also possible to construct population distributions in which there exist small neighborhoods of blacks whose interests differ noticeably from those of the surrounding white areas but which are too small to be entitled to a representative. Doctrinally, one feels uneasy about a constitutional "right" that disappears when people move from one neighborhood to another despite the fact that it is possible to speak of "tolerances," *see* Note, *supra* note 27, at 601 & n.155.

District-drawing problems could be eliminated by the introduction of a system of multimember districts along with cumulative voting, *see* R. DIXON, DEMOCRATIC REPRESENTATION 523-25 (1968); Note, *supra* note 27, at 598 (allowing states the choice of single-member or multimember districts), or pure proportional representation, *see* R. DIXON, *supra*, at 525-27. While states are free to adopt these systems for their own elections, *see, e.g.*, ILL. REV. STAT. ch. 46, §

## II. EXTENT OF STATE DISCRETION IN RACIAL APPORTIONMENT

### *A. Scrutiny of Single-Member Districting*

Given that the Supreme Court has not endorsed a right to proportional representation for racial groups, there remains the question of how far outcome scrutiny modifies the intent standard. Differently stated, to what extent may state legislatures apportion in a manner that produces adverse outcomes for particular racial groups? The question has two major facets: when will adverse effects on a minority racial group invalidate a single-member districting plan absent invidious intent, and what range of outcomes is acceptable for plans intentionally designed to benefit racial minorities?

A recent case in the Fifth Circuit, *Kirksey v. Board of Supervisors*,<sup>53</sup> suggests a role for outcome scrutiny beyond the context of multimember districts. The Fifth Circuit opinion questions the extent of state discretion to fashion single-member districts which adversely affect minority racial representation. The court en banc held that division of a concentrated black population in Hinds County, Mississippi, among five districts, in such a way that blacks had a voting-age majority in none, was a violation of equal protection even though the district lines were drawn without regard to race.<sup>54</sup> The court applied the *White v. Regester* test,<sup>55</sup> formulated originally for multimember district cases, and found a denial of access to the political process which was perpetuated by the single-member districting plan.<sup>56</sup> The plan was

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17-13 (1975) (originally enacted as Australian Ballot Act of 1891, § 17, 1891 Ill. Laws 107) (cumulative voting for three legislators per district), they may not be used for congressional elections, 2 U.S.C. § 2c (1976), and are for the most part foreign to the American political fabric. Furthermore, federal courts generally do not have the option of instituting multimember districts. See p. 1868 & note 102 *infra*.

<sup>53</sup> 554 F.2d 139 (5th Cir.) (en banc), *cert. denied*, 434 U.S. 968 (1977).

<sup>54</sup> *Id.* at 141. The original districting had been struck down for failure to satisfy one person, one vote; the district court finally approved a plan drawn by a state-hired private agency. On appeal, the district-court-approved plan was challenged as a denial of access, a point which had not been decided under the original challenge. A panel of the Fifth Circuit affirmed, 528 F.2d 536 (1976), but the court en banc reversed. 554 F.2d at 140-42.

<sup>55</sup> See pp. 1848-49 *supra*.

<sup>56</sup> 554 F.2d at 148-51. The Fifth Circuit also held that the district court had abused its discretion in approving a plan that split up the black community. *Id.* at 151-52.

The Supreme Court has not applied the *White v. Regester* test to single-member districts. Prior to *Kirksey*, the Fifth Circuit had asserted that the test would be applicable to such cases but had offered no legal rationale. See *Howard v. Adams County Bd. of Supervisors*, 453 F.2d 455, 458 n.2 (5th Cir.) (no dilution

therefore struck down and the case remanded to the district court. Although the court of appeals did not prescribe a specific remedy, the opinion implied that the district court on remand should produce at least one, and perhaps two, safe black seats to remedy the denial of access. First, the court relied on the total absence of black representation in a county that was over one-third black as evidence of a continued denial of access.<sup>57</sup> Second, stressing the requirement of a realistic opportunity for blacks to elect representatives, the court held that black population majorities of approximately fifty-four percent in two of the five districts were not adequate because in both districts, the black proportion of the voting-age population was below fifty percent.<sup>58</sup>

The majority opinion cited *United Jewish Organizations* with approval,<sup>59</sup> and Judge Gee, in a concurring opinion, stated that he reluctantly felt compelled by *United Jewish Organizations* to "install a more partisan gerrymander in favor of Hinds County black voters so as to guarantee their proportionate representation on the county board."<sup>60</sup>

In applying the *White v. Regester* standard to a single-member districting plan, the court looked at historical evidence of discrimination<sup>61</sup> and at present potential to elect black representatives.<sup>62</sup> Included as evidence of past discrimination were such factors as poll taxes, literacy tests, bloc voting, dual school systems, and educational and economic inequality.<sup>63</sup>

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found; "spoke-like" districts similar to those in *Kirksey* approved), *cert. denied*, 407 U.S. 925 (1972); *Turner v. McKeithen*, 490 F.2d 191, 197 n.27 (5th Cir. 1973) (dictum) (multimember case, citing *Howard*). More recently, a Fifth Circuit panel opinion by Judge Clark, one of the *Kirksey* dissenters, followed *Kirksey* as precedent. *United States v. Board of Supervisors*, 571 F.2d 951 (5th Cir. 1978). The facts were similar to those in *Kirksey*; this case concerned spoke-like supervisors' districts in less populous Forrest County, Mississippi. The panel remanded the case to the district court, explicitly refusing to give any guidance on where, between the poles of single-district black concentration and black distribution among all districts, the proper guarantee of "effective black participation in the future political processes" would lie, *id.* at 956. The panel denied that *Kirksey* would ineluctably require the formation of a black majority district. *Id.* at 955 & n.8.

<sup>57</sup> 554 F.2d at 146.

<sup>58</sup> *Id.* at 149-50.

Judge Hill in dissent expressed concern over the majority's failure to prescribe a clear standard for the district court, and he objected to the fact that the majority opinion might be read as pointing toward a right of minority proportional representation. *Id.* at 161-62.

<sup>59</sup> *Id.* at 151.

<sup>60</sup> *Id.* at 155.

<sup>61</sup> *Id.* at 144, 152-53 (quoting lower court findings).

<sup>62</sup> *Id.* at 148-50.

<sup>63</sup> *Id.* at 144.

*Kirksey* placed on defendants the burden of proving that the effects of past



Where such discriminatory devices have been used, *White v. Regester* requires courts to invalidate *multimember* districting plans that dilute minority voting strength. By extending *White v. Regester* to single-member plans, *Kirksey* implicitly adopts a new concept of dilution of access.

The concept of dilution is necessarily relative; the Supreme Court has held that "proof of lessening or cancellation of voting strength must be offered."<sup>64</sup> Multimember districts may be viewed as inherently antithetical to minority access because they submerge minority concentrations by combining them with surrounding majority populations.<sup>65</sup> For instance, a multimember district would be likely to dilute minority voting strength under this standard when the minority is concentrated in an area that might control a smaller single-member district. A single-member districting plan, on the other hand, cannot be considered inferior except by comparison to a hypothetical ideal. Although the Supreme Court compares projected effects of multimember districts to the potential effects of single-member districting, the Court has not recognized a right to any particular design of single-member districts.<sup>66</sup> If a court is to choose a standard for evaluating dilution in single-member districts — as the *Kirksey* court appeared to do — the standard must be related to the minority's proportion of the population of the political unit. One might say that *Kirksey* adopted no standard, but merely objected to the total lack of minority representation.<sup>67</sup> Even the minimal standard of *some* representation, however, appears arbitrary. For example, if a racial group has only twenty percent of the population in a county with three electoral districts, it would be

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discrimination had been dispelled. *Id.* at 146. This would bring within *Kirksey*'s ambit almost any locality with a significant minority population.

<sup>64</sup> *Chapman v. Meier*, 420 U.S. 1, 17 (1975).

<sup>65</sup> That the Supreme Court has considered the racial infirmity of multimember districting to lie in its inherent tendency to minimize minority voting strength as compared to a hypothetical random single-member scheme, rather than in a specific comparison of actual effects in a particular case, is apparent from the cases that discussed multimember plans, e.g., *Chapman v. Meier*, 420 U.S. 1, 15 (1975); *Whitcomb v. Chavis*, 403 U.S. 124, 158–60 (1971).

<sup>66</sup> To remedy multimember districting, federal courts have not required plans with specified levels of minority representation, nor have they mandated creation of a certain number of safe seats. Instead, they have let masters draw single-member districts, on the apparent assumption that any nonracially motivated single-member plan would improve minority electoral opportunities. See, e.g., *Moore v. Leflore County Bd. of Election Comm'rs*, 502 F.2d 621, 623 (5th Cir. 1974). Such a remedy was implicitly approved in *White v. Regester*. See 412 U.S. 755, 759 (1973).

<sup>67</sup> This conclusion would leave the court open to the criticism of Judge Hill's dissent that the district court on remand was being told to take another wild guess at proper redistricting, 554 F.2d at 160.



arbitrary to give it a right to hold one seat out of the three. And if a racial group comprises three quarters of a five-district county, why extend a right to only one safe seat out of five? Without a standard by which to measure a particular single-member plan, the *White v. Regester* test cannot be applied to single-member districting. Yet because the Supreme Court has refused to endorse proportional representation, the standard that one might want to use — one keyed to the minority proportion of the population — would not be proper.

*B. State Discretion to Benefit Minorities Through  
Apportionment at the Expense of the Majority*

If *Kirksey* represents an expansion of the range of situations in which a race-conscious remedy will be ordered by the federal courts, *United Jewish Organizations v. Carey*<sup>68</sup> represents a complementary case — benign race-conscious districting by the state legislature without constitutional compulsion.<sup>69</sup> The reapportionment plan divided a community of Hasidic Jews between two districts and reduced their political strength from what it had been when they had all resided in one district. The question raised by petitioners, claiming to represent the Hasidim, was whether New York had violated the fourteenth and fifteenth amendments.<sup>70</sup>

The Court did not treat petitioners as a discrete group with a group representation claim,<sup>71</sup> but rather as whites, members of the majority. The Court held that New York's actions were not unconstitutional for two reasons.<sup>72</sup> First, section 5 of the Voting Rights Act, requiring New York to secure the Attorney General's approval of its new districts, contemplates use of racial criteria in reapportionment, and New York did no more than was required under section 5.<sup>73</sup> Second, even if section 5 had not mandated New York's actions, New York had the right to minimize the consequences of racial discrimination at the polls by benefiting blacks, as long as no "racial or political groups have been fenced out of the political process."<sup>74</sup> In other words, the state's

<sup>68</sup> 430 U.S. 144 (1977).

<sup>69</sup> The legislature was, however, seeking to comply with the Voting Rights Act. *Id.* at 148–50.

<sup>70</sup> *Id.* at 155.

<sup>71</sup> *Id.* at 153–54 & n.14.

<sup>72</sup> The vote was seven to one, with Chief Justice Burger dissenting and Justice Marshall not participating. Justice White wrote the plurality opinion, encompassing both rationales. He was joined in the first by Justices Brennan, Blackmun, and Stevens and in the second by Justices Rehnquist and Stevens.

<sup>73</sup> 430 U.S. at 162–65.

<sup>74</sup> *Id.* at 167 (quoting *Gaffney v. Cummings*, 412 U.S. 735, 752 (1973)).

discretion is limited only by the traditional tests of unconstitutionality established by *Gomillion v. Lightfoot* and *White v. Regester*.<sup>75</sup>

In light of *United Jewish Organizations*, it is difficult for the majority to block a remedial measure by the state to benefit the minority. The white majority could seldom if ever prove the factors necessary to establish a violation based on *White v. Regester*.<sup>76</sup> On the other hand, such a measure would certainly be undertaken with intent to increase black representation along with the knowledge that this could be done only at the expense of prevailing white representation. The narrow answer is provided by the first rationale of the *United Jewish Organizations* plurality opinion: the Voting Rights Act contemplated this as part of its remedial scheme, and the Court was unwilling to overrule cases holding it constitutional.<sup>77</sup> The second rationale provides a broader answer: the state did not stigmatize or "fence out" any groups. Philosophically, the approach of the plan was remedial, favoring a disadvantaged group.<sup>78</sup> Practically, the complaining group — the white majority — still had greater than proportional representation.<sup>79</sup>

The remedial nature of the broad rationale of *United Jewish Organizations* might indicate that the state enjoys discretion to benefit only groups that are traditionally thought of as disadvantaged; it is disadvantage because of race that justifies a race-conscious remedy. This conclusion comports well with the narrow rationale of satisfaction of the remedial section 5, yet it goes further, giving states not covered by the Voting Rights Act the ability to invoke remedial measures and possibly serving to validate measures not traditionally demanded by the Attorney General under section 5. The Court's observation that whites remained fully represented also suggests a natural limitation on which groups the state may benefit and at whose expense: only groups with less than their proportional share can be accorded safe seats and only up to their proportional shares.<sup>80</sup> Even then,

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<sup>75</sup> See 430 U.S. at 165.

<sup>76</sup> The Court barely alluded to this when it cited the fact that whites still had control of 70% of the districts but constituted only a 65% population share as an indicator of their "fair representation" in Brooklyn as a whole. Perhaps this is a reflection of the approach always taken to proportional representation: if failure to achieve it is still not enough to prove denial of access, then achievement of it and more conclusively proves fair representation.

<sup>77</sup> 430 U.S. at 161.

<sup>78</sup> *Id.* at 167.

<sup>79</sup> *Id.* at 166-167.

<sup>80</sup> But see Note, *supra* note 47, at 107 (1974) (suggesting greater than proportional representation for minority groups as a compensatory measure). Conceivably, if there are three groups, one with much greater than proportional

care must be taken to avoid reducing other groups' representation below *their* shares.

The question avoided in *United Jewish Organizations* — whether the state would have had the same discretion had the Hasidim been treated as a cognizable insular group — may be scrutinized under this analysis. Reliance on the narrow rationale of *United Jewish Organizations* suggests that it is proper to benefit racial groups in order to satisfy section 5. In so doing, the state's goal must be to prevent dilution of the strength of all protected groups; one such group cannot be benefited at the expense of another. Yet it is not clear how far this would extend. Certainly a state could not reduce Puerto Rican representation to bring black representation up; the former, too, is protected by the Voting Rights Act. And where whites constitute an absolute majority in each district so that other groups cannot influence any election, it is probably reasonable to allow the state to choose to benefit some, even if not all, of the smaller groups at the whites' expense. But swing blocs present a problem. In an area where each district is 45% white, 30% black, and 25% Puerto Rican, whites are in control of all districts only if they get the swing support of blacks or Puerto Ricans. May the state redistrict to give blacks 30% of the districts safely, leaving whites in safe control of the other 70%? It would not violate section 5: it does not run afoul of the nonretrogression principle,<sup>81</sup> since Puerto Ricans controlled no safe seats under the prior districting. Still, the Puerto Ricans would be hurt in a very real way — deprived of a swing position<sup>82</sup> and left without potential coalition partners.<sup>83</sup>

Reliance upon the broad rationale of *United Jewish Organizations* yields a similar framework: the guiding principle is that

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representation and the other two with very low representation relative to their population shares, one of the deprived groups can be granted strength greater than its proportion by chipping away at the strength of the strong group without further hurting the other weak group. Strictly speaking, *United Jewish Organizations* may not forbid this: the unchanged group cannot complain, since it was not reduced in strength, *see Beer v. United States*, 425 U.S. 130 (1976) (non-retrogression principle); nor can the majority complain, since it still enjoys proportional or better strength, *see* 430 U.S. at 166. Whether this is wise from a policy standpoint is questionable, *see* pp. 1856–57 *supra*. Furthermore, to the extent that all groups aside from the one benefited can be telescoped into one constructive group, the latter is hurt, and *United Jewish Organizations* will not sustain the change.

<sup>81</sup> *See Beer v. United States*, 425 U.S. 130, 141 (1976).

<sup>82</sup> *Cf. Lipscomb v. Wise*, 551 F.2d 1043, 1048 (5th Cir. 1977) ("Chicano politics in Dallas must be the politics of coalition."), *rev'd on other grounds*, 98 S. Ct. 2493 (1978).

<sup>83</sup> *See also* p. 1857 *supra*.

groups with less than proportional representation can always be adjusted upward in strength, and groups with greater than proportional strength can always be adjusted downward,<sup>84</sup> as long as there is no invidious intent in so doing. Swing positions, which represent strength not susceptible to measurement in terms of representational strength, would present problems similar to those encountered under the narrow rationale. However, since the state's action would not rely for justification on the Voting Rights Act, which protects all groups, the state may claim more discretion to choose which single group to benefit, without being overly solicitous of all others at the same time.

The celebrated case of *Regents of the University of California v. Bakke*<sup>85</sup> may exert a significant influence upon the extent of state discretion to benefit minority groups through racial reapportionment. Though *Bakke's* ultimate effects are far from clear, some guidelines for the field of voting apportionment can be drawn from the various opinions of the Justices. Voting strength is analogous to opportunity for higher education in one important respect: both are "zero-sum games"; helping one individual or group in these areas, unlike, for example, school desegregation, necessarily redounds to the detriment of others.

No majority of Justices can be found in *Bakke* to resolve the constitutional issues that arise in race-conscious voting apportionment cases. Four Justices would uphold any "benign program" that promotes an "important and articulated purpose," unless it "stigmatizes" some group or unduly burdens those not well represented in the political process.<sup>86</sup> This view would validate many types of voting apportionment aimed to benefit blacks, and perhaps other minorities as well.<sup>87</sup> But the four Justices failed to assemble a majority for this view in *Bakke*. Four other Justices found it unnecessary to reach the constitutional issue, resolving the case on a statutory ground that applies only to federally

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<sup>84</sup> For discussion of whether groups with proportional or greater strength might also be adjusted upward within the constraints of *United Jewish Organizations*, see note 80 *supra*.

<sup>85</sup> 98 S. Ct. 2733 (1978).

<sup>86</sup> *Id.* at 2785 (Brennan, White, Marshall & Blackmun, JJ., concurring in the judgment in part and dissenting).

<sup>87</sup> Indeed, language can be found in the opinion which would sanction extreme measures where lesser means would not ensure the desired results. "When individual measurement is impossible or extremely impractical, there is nothing to prevent a State from using categorical means to achieve its ends, at least where the category is closely related to the goal." *Id.* at 2793. In apportionment cases, however, categorical means can produce results that none of the Justices would be likely to support. For example, the Supreme Court would surely strike down a state requirement that a specified number of seats in an elected legislative body must be reserved for members of selected minority groups.

funded educational institutions.<sup>88</sup> Elaboration of their views on the constitutional issues that bear on racial apportionment will thus have to await some future case.

Justice Powell, who announced the judgment of the Court and cast the pivotal vote in *Bakke*, voiced support of race-conscious state action only under limited conditions. All racial classifications, he held, must be subjected to strict scrutiny, no matter how "benign" their purpose.<sup>89</sup> To satisfy this standard of review, a state must advance a compelling interest to justify its action. In the field of education, diversity of the student body represents one such compelling interest. In any racial case, Justice Powell indicated, there may be a compelling interest where a state takes remedial action in response to a finding of past discrimination. This finding must relate to discriminatory conduct more specific than general "societal discrimination."<sup>90</sup> Further, the finding must be made by a judicial, legislative, or administrative body.<sup>91</sup>

In applying Justice Powell's standards to racial apportionment cases, the most important issue is whether the state legislature has based its action on a finding of past discrimination. If it has, the compelling interest requirement is satisfied, and the only remaining issue is the extent of remedy to be permitted.<sup>92</sup> Where the state has made no such finding, Justice Powell would uphold the state action only if some other compelling interest could be found. Since our representative form of government

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<sup>88</sup> *Id.* at 2811-15 (Stevens, J., concurring in the judgment in part and dissenting in part, joined by Burger, C.J., & Stewart & Rehnquist, JJ.) (citing Title VI of the Civil Rights Act of 1964, 42 U.S.C. §§ 2000d-4 (1970)).

<sup>89</sup> Justice Powell's idea of strict scrutiny was consistent with past Supreme Court articulation of that concept in racial cases, and differed sharply from the standard advanced by Justices Brennan, White, Blackmun, and Marshall. Justice Powell stressed that equal protection is a right guaranteed to the individual. Where there is injury to an individual, it is constitutionally irrelevant whether the state action attaches any "stigma" to a group. The result of his analysis is to guarantee the same equal protection for all, regardless of race. "The guarantee of equal protection cannot mean one thing when applied to one individual and something else when applied to a person of another color. If both are not accorded the same protection, then it is not equal." 98 S. Ct. at 2748.

<sup>90</sup> *Id.* at 2757.

<sup>91</sup> *Id.* at 2757-58.

<sup>92</sup> The Supreme Court has already sanctioned one such remedy on the federal level, in the Voting Rights Act of 1965. See *South Carolina v. Katzenbach*, 383 U.S. 301 (1966); cases cited note 24 *supra*. The congressional action in that case was taken pursuant to its enforcement power under § 2 of the fifteenth amendment; though states do not possess such enforcement power by express grant, the recognition of a compelling interest in remedying past discrimination implies that such a power is reserved to the states.

rests on an unhindered electoral process, it is unlikely that any state interest short of remedying past discrimination could be compelling enough to justify tampering with that process in a race-conscious manner.

It is important to bear in mind, however, that Justice Powell explicitly distinguished *United Jewish Organizations* not only as a situation where prior findings of discrimination had been made but also as a situation where the majority group — the whites — had suffered no actual cognizable harm, since they were still afforded “meaningful participation in the electoral process.”<sup>93</sup> Thus, read literally, *Bakke* has no implication for the types of apportionment approved by either the narrow or broad rationale of *United Jewish Organizations*.<sup>94</sup>

While Justice Powell’s opinion represents only his own jurisprudence, the application of his standard to racial apportionment cases would reconcile the interest of states in eliminating the vestiges of past electoral race discrimination with the important goal of keeping the electoral process free from manipulation. This could provide a fair and workable standard for resolving the thorny issues that are likely to arise when the Supreme Court eventually applies the reasoning of the *Bakke* opinions to the field of reapportionment.

### III. RACE-CONSCIOUS APPORTIONMENT AS A REMEDY

#### *A. Implications of Kirksey*

While legislatures may constitutionally consider race in apportioning voting districts, it is uncertain whether courts are permitted or even obligated to order race-conscious reapportionment as a remedy once constitutional violations have been proved under traditional tests. Quite apart from its relevance in determining the standard for finding a constitutional violation,

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<sup>93</sup> 98 S. Ct. at 2756.

<sup>94</sup> See pp. 1862–64 *supra*.

For the post-*Bakke* effect of Title VI on apportionment doctrine, see Friday v. Uzzell, 98 S. Ct. 3139 (1978), *vacating and remanding mem.* 558 F.2d 727 (4th Cir. 1977) (en banc). The Fourth Circuit had directed entry of summary judgment in favor of student plaintiffs who challenged a state university’s regulation requiring safe black seats in the student legislature. The court had held that this plan violated the fourteenth amendment and 42 U.S.C. §§ 1983, 2000d (1970). In accordance with Justice Powell’s *Bakke* analysis, the issue on remand should be whether there is a compelling justification for such apportionment, as opposed to affirmative action admission policies.

*Kirksey v. Board of Supervisors* has a number of implications for the question of the proper remedy. By holding that some single-member districts drawn without consideration of race may be constitutionally infirm, it indicates that the traditional remedy in cases challenging multimember plans — ordering a change to single-member districts — may be inadequate. Courts following *Kirksey* may have to go further and actually mandate consideration of race in drawing up the single-member districts. Had *Kirksey* rested solely on equitable grounds, it would merely have established that the district court — forced to reapportion because of one person, one vote — abused its discretion when it failed at least to prevent fragmentation of a solid black community as a subordinate goal.<sup>95</sup> Yet *Kirksey* set forth a constitutionally based remedy that would seem to be required regardless of whether reapportionment was otherwise necessary to comply with one person, one vote. Reapportionment would be the remedy mandated for denial of access, regardless of whether it was the districting itself which primarily constituted the violation as opposed to other factors listed in *White v. Regester*.

The expanded role of federal courts called for by *Kirksey* is dictated by neither precedent nor logic. Except for a few of the Fifth Circuit cases cited by *Kirksey*, precedent does not support mandatory imposition of benign gerrymandering by federal courts, except where required by the Voting Rights Act.<sup>96</sup> Nor does precedent indicate that constitutional violation exists in situations other than that of multimember districts absent invidious intent. Furthermore, courts lack expertise in balancing delicate apportionment-related political factors and have no popular mandate.

*Chapman v. Meier*<sup>97</sup> and subsequent cases<sup>98</sup> have held that

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<sup>95</sup> Cf. *White v. Weiser*, 412 U.S. 783, 795–97 (1973) (reversing district court's choice of apportionment plan where it had before it as well a plan that conformed better to state policy).

Failure to prevent fragmentation of a solid community cannot by itself rise to the level of a constitutional violation. See *Kirksey v. Board of Supervisors*, 554 F.2d at 156 n.10 (Gee, J., concurring). *United Jewish Organizations* approved fragmentation of the Hasidic community despite the fact that other plans were available that would have left it intact and allowed for a 63.4% black concentration, just under the Attorney General's 65% guideline. 430 U.S. at 182 (Burger, C.J., dissenting).

<sup>96</sup> See, e.g., *City of Richmond v. United States*, 422 U.S. 358, 370–71 (1975) (postannexation city districting must fairly reflect black strength); *City of Petersburg v. United States*, 354 F. Supp. 1021 (D.D.C. 1972) (same), *aff'd mem.*, 410 U.S. 962 (1973).

<sup>97</sup> 420 U.S. 1 (1975).

<sup>98</sup> See, e.g., *Connor v. Finch*, 431 U.S. 407 (1977).



courts must meet "higher standards"<sup>99</sup> than legislatures in the formulation of reapportionment plans. *Chapman v. Meier* spoke to the multimember district situation, reiterating the Court's strong preference for single-member districting in court-ordered plans<sup>100</sup> and holding courts closer to strict one person, one vote equality than legislatures.<sup>101</sup> Justice Powell later broadly summed up the rationale of this rule: "[T]he theory underlying [the] more demanding standard of review is that legislative plans are likely to reflect a State's political philosophy and the will of its people more accurately than a decision by unelected federal judges."<sup>102</sup> The underlying assumption of the requirement of higher standards is that courts have but a limited role in the state's process of apportionment. The early one person, one vote cases justified court interference only by reference to an objective mathematical criterion for equal protection, a goal toward which courts could strive and against which court action could be measured. The *Kirksey* majority, however, interpreted the requirement of higher standards not to limit discretion to deviate from an objective goal but rather to call for the pursuit of "fair representation" to its ultimate limits.<sup>103</sup> Judge Hill's dissent criticized this interpretation,<sup>104</sup> which, though possessing novel appeal and not flatly contradicted by prior cases, runs counter to the objective orientation of the one person, one vote cases.

Section 5 of the Voting Rights Act is of little aid in determining the standard for court-ordered plans, for it does not apply to such plans. Excluded might even be plans formulated by a

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<sup>99</sup> 420 U.S. at 26.

<sup>100</sup> *Id.* at 17-19 (citing *Connor v. Johnson*, 402 U.S. 690, 692 (1971)).

<sup>101</sup> The strictest standard is still for apportionment of Congress. 420 U.S. at 27 n.19.

<sup>102</sup> *Connor v. Finch*, 431 U.S. 407, 431 (1977) (Powell, J., dissenting).

The extent to which a court could ever justify a deviation in favor of state policy is in doubt. Justice Powell believed that in this case, the distinction between court-ordered plans and legislative plans was unimportant, since the district court had supported its choices by explicit references to state policy; nevertheless, the Court reversed. *Cf. Wallace v. House*, 538 F.2d 1138, 1144, 1146 (5th Cir. 1976) (rejecting the use of multimember districts despite the claim that they served the purpose of affording minorities better access to the political process), *cert. denied*, 431 U.S. 965 (1977). *But cf. Mahan v. Howell*, 410 U.S. 315, 330-33 (1973) (allowing use of multimember district in light of special circumstance — impending elections).

<sup>103</sup> 554 F.2d at 150-51.

<sup>104</sup> *Id.* at 160-61.

state or its agency pursuant to court order<sup>105</sup> as well as those actually formulated by a court.<sup>106</sup>

The Supreme Court's approach to apportionment remedies was illustrated last Term in *Connor v. Finch*.<sup>107</sup> The Court was presented with the "painfully protracted"<sup>108</sup> challenge to the statewide Mississippi legislative reapportionment — including the same districts as in *Kirksey* — but did not mandate a race-conscious remedy. The Court struck down the districting plan

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<sup>105</sup> *East Carroll Parish School Bd. v. Marshall*, 424 U.S. 636, 638 n.6 (1976), would seem to dictate that plans formulated by the local political unit pursuant to court order would be considered as court-ordered and not legislative plans. See *United States v. Board of Supervisors*, 571 F.2d 951, 953 (5th Cir. 1978) (following *East Carroll*). But see *Wise v. Lipscomb*, 98 S. Ct. 2493, 2498 (1978) ("A new reapportionment plan enacted by a State, including one purportedly adopted in response to invalidation of the prior plan by a federal court, will not be considered 'effective as law' . . . until it has been submitted and has received clearance under § 5.") *East Carroll* was distinguished as a situation wherein the political body did not and could not legally reapportion itself but rather merely submitted proposals to the court; it was the court that actually formulated the plan, though it relied on these very proposals. *Id.* at 2499-500. As the dissent points out, however, the distinction is not persuasive. See *id.* at 2503-04 (Marshall, J., dissenting). What remains is that if a court has enough to do with the actual formulation of the plan, it will be considered court ordered.

<sup>106</sup> However, logically different considerations apply in each of these cases. For the purposes of § 5, it would run counter to established notions of the jurisdiction of federal courts to condition the jurisdiction of a district court upon the approval of the Attorney General or another district court. See *Zimmer v. McKeithen*, 467 F.2d 1381, 1383 (5th Cir. 1972), *vacated en banc on other grounds*, 485 F.2d 1297 (1973), *aff'd per curiam on other grounds sub nom.* *East Carroll Parish School Bd. v. Marshall*, 424 U.S. 636 (1976). But where the plan is prepared by a state, consideration of political factors such as race may be proper despite the fact that the initial inducement for the plan was a court order. Thus, the higher standards of *Chapman v. Meier* would restrain courts' consideration of race-conscious plans only if the plans were prepared by the courts themselves. This formulation would, for example, allow a district court to approve and adopt a state plan that chose to fulfill the court-ordered improvement of minority access by implementing a benign racial gerrymander. This is the result actually reached in *Wise v. Lipscomb*, 98 S. Ct. 2493, 2499 (1978). As a practical matter, however, courts are usually presented with a number of alternatives by both the state and the challengers of the state's plans. The court then does participate by making the choice of which plan to adopt; so it is not really a decision supported by popular mandate, especially if the plan that the court chooses is not the state's first choice. Furthermore, the fact that a court order was necessary to cause the state to redistrict is a further indicator that popular support is qualified. Finally, a state looking for expertise and a court looking to appoint a master might hire the same demographers and cartographers and give them vague instructions. The validity of the plan should not depend upon who hired its architects.

<sup>107</sup> 431 U.S. 407 (1977).

<sup>108</sup> *Id.* at 410.

for violations of one person, one vote<sup>109</sup> but also addressed the question of racial denial of access:

Such unexplained departures from the results that might have been expected to flow from the District Court's own neutral guidelines can lead, as they did here, to a charge that the departures are explicable only in terms of a purpose to minimize the voting strength of a minority group. The District Court could have avoided this charge by more carefully abiding by its stated intent of adopting reasonably contiguous and compact districts, and by fully explaining any departures from that goal.<sup>110</sup>

Thus, the object of reapportionment is to follow race-neutral guidelines and explain any departures from the results that would be naturally expected, in order to avoid charges of invidious intent. *Connor v. Finch*, however, included a disclaimer of any intent to dictate the result in *Kirksey*, then pending before the Fifth Circuit en banc,<sup>111</sup> since *Kirksey* dealt with supervisors' districts, where the additional considerations of road and bridge mileage might be relevant.<sup>112</sup> The Fifth Circuit in *Kirksey*, moreover, chose not to wait until *Connor v. Finch* was handed down despite Judge Coleman's dissent<sup>113</sup> and refused to grant a later rehearing.<sup>114</sup>

### B. A Proposed Test

A court must approach a claim of a constitutional violation with a presumption that a race-conscious remedy will not be used. If a violation is found, the remedy will depend upon the nature of the violation. Unconstitutional multimember districts, under the traditional *White v. Regester* test, should be remedied as at present, by ordering race-neutral single-member redistricting. It will be more difficult to show a violation where single-member districts prevail. Of course, invidious intent conclusively establishes the violation. This Note has rejected the *Kirksey* approach of indiscriminate reliance on the *White v. Regester* factors and expected disparities from proportional representation and suggests instead the following test.

A state may know that its apportionment has the effect of underrepresenting particular groups and yet leave it untouched. This may constitute invidious discrimination, for *Baker v. Carr*<sup>115</sup>

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<sup>109</sup> *Id.* at 420-21.

<sup>110</sup> *Id.* at 425.

<sup>111</sup> The opinions were both handed down May 31, 1977.

<sup>112</sup> The *Kirksey* court eventually accorded these little weight. 554 F.2d at 151.

<sup>113</sup> *Id.* at 157.

<sup>114</sup> *Id.* at 139.

<sup>115</sup> 369 U.S. 186 (1962).

demolished the distinction in equal protection of voting between action and inaction.<sup>116</sup> There are two components of invidious intent. First, the invidiousness must be established, specifically by showing continuing unresponsiveness of the majority legislators to the minority voters' needs and desires; less direct evidence, such as bloc voting, past discrimination, and lack of proportional representation, does not suffice. Second, in light of the deluge of conflicting expert testimony that accompanies trials of this sort, the state ought not be held to possess knowledge-intent unless the challenged plan actually has been in effect. Proposed single-member solutions should not be rejected prospectively. The effect of this rule is that multimember district cases, in which the minority position can generally be improved by the institution of race-neutral single-member districting, will not require direct race-conscious apportionment.

In order to implement a race-conscious remedy, standards must be set.<sup>117</sup> In place of the arbitrary proportional representation standard, the court could employ a statistical averaging method. A computer would be programmed to select a large number of racially neutral plans at random, within certain constraints—the necessary number of single-member districts, standards of compactness and contiguity, and other legitimate goals, such as preservation of historical voting units.<sup>118</sup> The representational strength of the minority under each of these random plans would be measured, and the average would be calculated and used as the level of minority representation for the court-ordered plan.

By taking account of not only the proportion of minority population but its distribution as well, this statistical averaging method yields a valid estimate of what minority representation would likely be if there were no trace of racial discrimination. Reliance on population distribution also reflects group commonality on nonracial matters, for geographically concentrated groups are likely to share more interests than widely dispersed groups, and by leaving the ultimate drawing of the districts in the hands

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<sup>116</sup> For a pre-*Baker v. Carr* application of the action/inaction test to find an apportionment case justiciable, see *Gomillion v. Lightfoot*, 364 U.S. 339, 346–48 (1960).

<sup>117</sup> “One cannot speak of ‘debasement’ or ‘dilution’ of the value of a vote until there is first determined a standard of reference as to what a vote should be worth.” *Baker v. Carr*, 369 U.S. 186, 300 (1962) (Frankfurter, J., dissenting).

<sup>118</sup> There must be borne in mind the danger that the introduction of too many extraneous constraints could roughly predetermine the racial results of the random exercise, either by limiting the absolute number of possibilities too much or by introducing as a governing constraint a factor that is in some way actually race correlated.

of the court or the state, this method avoids the capriciousness of letting a computer choose the actual lines at random. The resulting standard would generally fall somewhat below proportional representation.<sup>119</sup>

#### IV. CONCLUSION

The Supreme Court has not recognized and has not indicated that it is about to recognize any right of group representation. Use of race-conscious apportionment as a remedial device is closer to reality<sup>120</sup> although this Note has cautioned that it should be carefully applied. The ultimate acceptability of this type of remedy may yet be broadly influenced by cases outside the area of voting.<sup>121</sup> Certainly, the necessity for judicial intervention and the political acceptability of the remedy will depend on the extent to which states take the initiative and fairly reapportion themselves after the 1980 census. Section 5 of the Voting Rights Act of 1965 has served as a check upon attempts to minimize minority voting strength; as a last resort, Congress might choose to extend its coverage beyond those states which have exhibited certain obvious characteristics of longstanding discrimination.<sup>122</sup> While Congress, the Attorney General, and the

<sup>119</sup> Some plans selected by the computer at random would include safe black districts, provided that at least one pocket existed in which blacks constituted a safe majority and in which enough total population resided to support the assignment of a representative to it. Obviously, the chances of such pockets' being selected without being cut too small to leave blacks in control increase as the pockets' sizes increase. The statistical average of minority representation would be close to zero where the population is very well mixed or where there are few districts to be drawn. And because few plans will randomly cut across the political unit in such a way as not to break up some minority pockets, the average minority safe district percentage will generally fall below the minority's population percentage. Even in the extreme case of tightly concentrated minority voters, some neutral plans will cut into the concentration. See, e.g., *Beer v. United States*, 425 U.S. 130, 135-36 (1976); for a vivid description of the problem, see *id.* at 161 (Marshall, J., dissenting) (quoting Transcript of Oral Argument at 30) (north-south lines sliced up the black community like a "bologna" while east-west lines would have left it intact).

Minority voters who do not live in minority pockets will benefit only indirectly from the institution of safe districts.

<sup>120</sup> The Fifth Circuit endorsed its use in *Kirksey* and in *United States v. Board of Supervisors*, 571 F.2d 951 (5th Cir. 1978).

<sup>121</sup> See, e.g., pp. 1864-66 *supra*.

<sup>122</sup> The experience with the nationwide literacy test ban that was upheld in *Oregon v. Mitchell*, 400 U.S. 112 (1970), illustrates the expansive nature of Congress' power to extend the coverage of the Voting Rights Act. See also G. GUNTHER, *CASES AND MATERIALS ON CONSTITUTIONAL LAW* 1033-39 (9th ed. 1975) (discussing power of Congress to extend the substantive scope of the fourteenth amendment).

federal courts must vigorously safeguard voting rights, today no less than in 1964, "legislative reapportionment is primarily a matter for legislative consideration and determination."<sup>123</sup>

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<sup>123</sup> Connor v. Finch, 431 U.S. 407, 414 (1977) (quoting Reynolds v. Sims, 377 U.S. 533, 586 (1964)).